

rents and profits, and exerts other acts of ownership, then, if the son be an infant, it is said, as the parent is the natural *guardian* of the child, the perception of the profits or other exercise * of dominion shall be referred to that [*174] ground, and the right of the son shall not be prejudiced, and so in numerous cases the point has been adjudged (a); and it will not vary the case if the son sign receipts in the name of the father, for during his minority he could give no other receipts that would discharge the tenants who hold by lease from his father (b).

Chief Baron Eyre's opinion.—**Lord Nottingham's opinion.**—Lord Chief Baron Eyre expressed himself dissatisfied with this reasoning in reference to the guardianship (c), and Lord Nottingham referred the decisions to a higher ground. "Some," he said, "have taken the difference, that where the father has colour to receive the rents as guardian, there perception of profits is no evidence of a trust: otherwise it would be if the perception of profits were without any such colour. Plainly the reason of the resolutions stands not upon the *guardianship*, but upon the *presumptive advancement*, for a purchase in the name of an infant *stranger* (that is, notwithstanding the relation of guardian and ward) with perception of profits, &c., will be evidence of a trust" (d).

7. Case of a father holding the possession, and son adult.—Suppose the father purchases in the name of the son who is *adult*, and then, without contradiction from the son, takes the rents and profits, and exerts other acts of ownership; even here it has been determined that the right of the son will prevail.

Grey v. Grey.—A stronger instance can hardly be conceived than occurred in the very leading case of *Grey v. Grey* (e), before Lord Nottingham. We have his lordship's own manuscript of this case, and the circumstances are thus

(a) *Gorge's case*, cited Cro. Car. 96; *Fox v. Fox*, 15 Ir. Ch. Rep. 550, & 2 Sw. 600; *Mumma v. Mumma*, 89.
 2 Vern. 19; *Taylor v. Taylor*, 2 Atk. 386; *Lamplugh v. Lamplugh*, 1 P. W. 111; and see *Stileman v. Ashdown*, 2 Atk. 480; *Lloyd v. Read*, 1 P. W. 608; *Christy v. Courtenay*, 13 Beav.

(b) *Taylor v. Taylor*, 1 Atk. 386.

(c) *Dyer v. Dyer*, 2 Cox, 94; S. C.

1 Watk. 220.

(d) *Grey v. Grey*, 2 Sw. 600.

(e) 2 Sw. 594; Finch, 338.